

Court No. - 3

Case :- WRIT - C No. - 17181 of 2017

Petitioner :- Harminder Singh

Respondent :- State Of U.P. And 3 Othrs.

Counsel for Petitioner :- Suresh Singh

Counsel for Respondent :- C.S.C., Shivam Yadav

Hon'ble Krishna Murari, J.

Hon'ble Ravindra Nath Kakkar, J.

It is contended that recovery is being pressed against the petitioner for realization of the amount determined as final assessment, which is illegal. It is further submitted that after the objection filed by the petitioner to the provisional assessment, the respondent authority did not give any opportunity of hearing fixing a date and time for the same and, thus, the impugned action is not only dehors the provisions of the Code, but also in violation of proposition settled by a Division Bench of this Court in the case of **Ashok Kumar & Ors. Vs. State of U.P. & Ors., 2008 (6) ADJ 660 (DB).**

However, Shri Shivam Yadav, learned counsel for the respondents no.2 and 3 prays for short time to seek instructions in the matter to ascertain whether the factual averments made are correct or not.

Put up as fresh on 2.5.2017. By that time, the instructions may be placed before the Court.

Till then, no coercive steps shall be taken against the petitioner in pursuance of the impugned order.

Order Date :- 25.4.2017

Anand Sri./-

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Heard Sri Suresh Singh, learned counsel for the petitioner and Sri Shivam Yadav for the respondents 2 and 3.

By means of this petition filed under Article 226 of the Constitution of India, petitioner has prayed for quashing of the electricity bill dated 10.05.2016 issued by the respondent no. 3.

When the matter was taken up as fresh on 25.4.2017, the Court passed the following order :

*"It is contended that recovery is being pressed against the petitioner for realization of the amount determined as final assessment, which is illegal. It is further submitted that after the objection filed by the petitioner to the provisional assessment, the respondent authority did not give any opportunity of hearing fixing a date and time for the same and, thus, the impugned action is not only de hors the provisions of the Code, but also in violation of proposition settled by a Division Bench of this Court in the case of **Ashok Kumar & Ors. Vs. State of U.P. & Ors., 2008 (6) ADJ 660 (DB)**.*

However, Shri Shivam Yadav, learned counsel for the respondents no.2 and 3 prays for short time to seek instructions in the matter to ascertain whether the factual averments made are correct or not.

Put up as fresh on 2.5.2017. By that time, the instructions may be placed before the Court.

Till then, no coercive steps shall be taken against the petitioner in pursuance of the impugned order."

Today when the case called out, Sri Shivam Yadav, learned counsel for the respondents no. 2 and 3 has passed on copy of instruction which are taken on record

From a perusal of the instructions, it is clear that the provisional assessment has been made without fixing the date of hearing, and without issuing any notice.

In the absence of notice and opportunity of hearing before making provisional assessment in compliance of the provisions contained under clause 6.8(b) of the U.P. Electricity Supply Code, 2005, which is mandatory, the impugned electricity bill dated 10.05.2016 issued by the respondent no. 3 is not liable to be sustained and is hereby quashed.

Writ petition stands allowed. It shall be open to the respondent to make a fresh assessment after following the procedure prescribed.

However, there shall be no order as to costs.

Order Date :- 5.5.2017

RPD